Facial Recognition in Law Enforcement

Policy memo to the House Task Force on Artificial Intelligence

Emily McKay | March 2026

About this document

This memo was written for a university public policy course at American University. The assignment asked each student to create and write on behalf of their own advocacy organisation. The Privacy Project, its logo and its web address are fictional and were invented for the assignment. The memo is not affiliated with any real organisation, and the author's title of CEO is part of the exercise.

To: The House Task Force on Artificial Intelligence
From: Emily McKay, CEO, The Privacy Project
Date: March 6, 2026
RE: Facial Recognition in the Law.

In the age of surveillance and AI, biometric data has become increasingly valuable, and among biometric identification methods, facial recognition technology has gained popularity with law enforcement. While facial recognition can aid law enforcement in catching dangerous criminals and locating missing people, the technology remains unregulated at the federal level. The lack of regulation leads to significant differences in product quality and raises civil rights concerns. To protect both public safety and personal privacy, the Privacy Project calls for the comprehensive federal oversight of facial recognition systems used by law enforcement officers.

What is facial recognition technology?
Facial recognition technology, or FRT, is a biometric identification system that identifies, analyzes, and matches digital "face-prints" to identify an individual. Over time, this technology has evolved and now serves as one of the leading biometric identification systems. Facial recognition models are trained on images of faces using deep neural networks, which generate high-dimensional numerical vectors capturing unique facial features, essentially a facial fingerprint. These facial fingerprints are then stored in the company's database. For identification, the model extracts faceprints and searches the database for the best match. Matches above a certain threshold are then linked to similar photos or videos, and non-matches are then added as a new face-print.[1]

How is facial recognition technology used by law enforcement?
FRT has become increasingly popular among law enforcement officials for surveillance, target tracking, and verifying suspects' identities. Experts have identified several ways in which FRT could be used in law enforcement.[2]

1) Face Surveillance: The passive monitoring of a public place or public images, with the intent of matching a pre-selected list of images held by the government. Face surveillance is further categorized by where law enforcement is searching for the listed individuals: Stored video footage, third-party stored images, and real-time monitoring.
2) Face identification: The use of FRT to confirm a suspect through an existing photo data set.
3) Face tracking: The middle ground between face surveillance and face identification, involving active monitoring of a specific target using FRT. It is categorized by the method law enforcement uses to locate the person of interest: stored video footage, third-party stored images, and real-time monitoring.

While this technology may help law enforcement find criminals, there are also serious concerns about using FRT, including, but not limited to, potential abuses by law enforcement for mass

[1] Nasreen Dakhil Hasan and Adnan M. Abdulazeez, "View of Face Recognition Based on Deep Learning: A Comprehensive Review," Ijcs.net, 2026, https://www.ijcs.net/ijcs/index.php/ijcs/article/view/4037/582.
[2] Andrew Guthrie Ferguson, "Facial Recognition and the Fourth Amendment," *SSRN Electronic Journal* 1-106:1 (2019), https://doi.org/10.2139/ssrn.3473423.

surveillance, improper use of the technology, and the technology's inherent flaws, such as racial bias.

Potential Malicious Abuses of FRT

Around the world, FRT has been used by authoritarian regimes to keep checks on their citizens. Countries like Hungary, Iran, Russia, and China have all used FRT to identify protesters and political dissidents, with the intent of punishing the protesters later. While this may seem like a unlikly in the United States, there have been numerous reports of law enforcement officials in the United States using FTR against protesters.

Use of FRT in US Protests: In 2020, during the height of Black Lives Matter protests, law enforcement in South Florida used cameras and drones to document protesters with the intent of using FRT to try to identify protest organizers and associates. While investigating this, reporters found that there were around 20 searches for "Intelligence" using FRT technology before a crime was committed, to identify and mark citizens who had not yet committed a crime as potential threats and people of interest.[3]

More recently, during anti-ICE protests in Minnesota, ICE agents have told protestors that they have been using facial recognition on them, and in some cases have approached peaceful protestors or observed them using their phone cameras, stating that they were recording. In one instance, a woman named Nicole Cleland volunteered with a local watchdog group to monitor ICE activity in her neighborhood. An officer approached Cleland, stating that he was using FRT and recording her.[4] Three days later, she received an email stating that DHS Global Entry and Transportation Security Administration travel privileges had been revoked, an action that has been raised in court as a potential abuse of governmental relations against protest observers.

High amounts of User Error

Over-reliance by Law Enforcement: Another issue that arises with law enforcement using FRT is that officers become overly dependent on the technology rather than trusting their own judgment.[5] Lab studies have shown that when using FRT that provides biometric confidence scores, users are more likely to misidentify a perpetrator. This problem worsens because, when officers receive positive matches, they tend to rely on the technology and may stop conducting further due diligence out of blind trust in the algorithm.[6] This is only exacerbated by the fact that

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[3] Joanne Cavanaugh Simpson, "South Florida Police Quietly Ran Facial Recognition Scans to Identify Peaceful Protestors. Is That Legal?," Pulitzer Center, 2021, https://pulitzercenter.org/stories/south-florida-police-quietly-ran-facial-recognition-scans-identify-peaceful-protestors.

[4] Sheera Frenkel and Aaron Krolik, "The Tech Arsenal That ICE Has Deployed in Minneapolis," Nytimes.com (The New York Times, January 30, 2026), https://www.nytimes.com/2026/01/30/technology/tech-ice-facial-recognition-palantir.html.

[5] Cecelia K Stewart and Jeff Kukucka, "Cognitive Bias Affects Perception and Decision-Making in Simulated Facial Recognition Searches," *Behavioral Sciences* 15, no. 8 (August 12, 2025): 1094–94, https://doi.org/10.3390/bs15081094.

[6] Pete Fussey, Bethan Davies, and Martin Innes, "'Assisted' Facial Recognition and the Reinvention of Suspicion and Discretion in Digital Policing," *The British Journal of Criminology* 61, no. 2 (October 13, 2020): 325–44, https://doi.org/10.1093/bjc/azaa068.

most government agencies require no training at all when working with this technology; this training emphasizes that FRT is a law-enforcement tool, not a definitive answer to guilt.[7]

FRT leads to a lack of due diligence by law enforcement: Recent investigative reports have shown that excessive reliance on FRT by law enforcement leads to neglect of proper duties, with AI FRT models used to bypass other investigative methods and proceed without additional evidence.[8] In only seven states are officers and prosecutors required to disclose to defendants the use of FRT, and in many cases, officers intentionally omit mentioning the technology altogether.[9] By avoiding necessary due diligence, officers undermine people's Fourth Amendment rights and increase the risk of wrongful arrests, especially for people of color who are disproportionately misidentified by FRT.

Racial Bias in FTR

Misleading Marketing: While many facial recognition technology companies claim up to 99.95% accuracy across racial groups, these figures are wildly misleading and do not reflect the technology's actual performance in real-world settings. Companies parade around with high accuracy, but the methods they use to evaluate models are inherently flawed. The National Institute of Standards and Technology (NIST), the leading testing agency for facial recognition technology, tests FRT under lab-like conditions across different companies' facial recognition

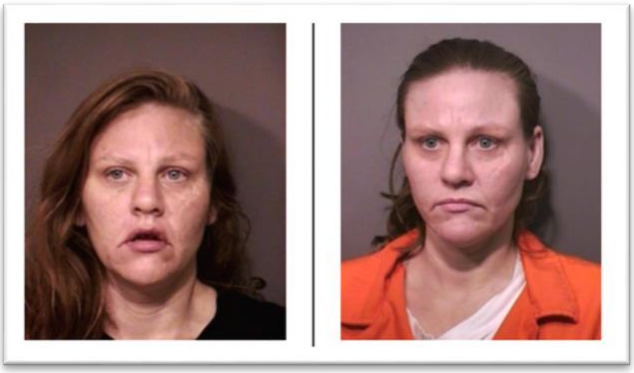


Figure 1: Photo from NIST Test data set (photo from NIST data)



Figure 1: Real use case of FRT to identify suspect, (photo form New Orleans police department)

[10]models, with the majority of photos coming from visa applications, passports, or mug shots

[7] Jannice Cebreros, "Facial Recognition Technology and Wrongful Arrests in the Digital Policing Era," UW Law Digital Commons, 2025, https://digitalcommons.law.uw.edu/wlro/vol100/iss2/1.
[8] Douglas MacMillan, "Police Ignore Standards after AI Facial Recognition Matches," Washington Post (The Washington Post, January 13, 2025), https://www.washingtonpost.com/business/interactive/2025/police-artificial-intelligence-facial-recognition/.
[9] Douglas MacMillan, David Ovalle, and Aaron Schaffer, "Police Seldom Disclose Use of Facial Recognition despite False Arrests," Washington Post (The Washington Post, October 6, 2024), https://www.washingtonpost.com/business/2024/10/06/police-facial-recognition-secret-false-arrest/.
[10] Figure 1: Patrick Grother, Mei Ngan, and Kayee Hanaoka, "Face Recognition Vendor Test (FRVT) Part 3: Demographic Effects," Face Recognition Vendor Test (FRVT) Part 3: Demographic Effects 8280 (December 2019), https://doi.org/10.6028/nist.ir.8280.

see figures 1. Meanwhile, the photos processed by FRT are usually low-quality and poorly lit, leading to substantial discrepancies between the algorithms' reported accuracy and their actual performance in real-world settings, see figure 2.

The Bias: Although FRT has improved, there are still major issues in identifying people of color. In one of the leading studies of how FRT affects people of color, they found that the error rate, 22.4% for people with darker skin tones, was around 7 times higher than that of lighter faces.[11] Concurrently, misidentification rates were significantly higher for women than for men.[12] These false positives, which disproportionately affect people of color, indicate that when FRT is applied to them, the algorithm is likely to return an alleged "match" that is unrelated to the individual of interest. This gap becomes apparent when analyzing the results of FRT in policing. When observing precincts that use facial recognition technology, they had significantly higher Black arrest rates compared to white arrest rates, with a 55% increase in black arrest rates and a 21% decrease in white arrest rates.[13] The use of FRT only exacerbates the issues of Inequitable policing felt by Black Americans. The issues of racial bias in the criminal justice systems only compounds with the lack of training using FRT and the lack of due diligence done by law enforcement when utilizing this tool.

The Right to Data Privacy

A growing concern about FRT centers on how "match images" for the databases are gathered. While some databases contain documented legal photos, such as mugshots, passports, and visa photos, a growing number of FRT software packages include a database of public images scraped from the internet, without user knowledge. Currently, there is no US regulation on the private collection of images by private companies, resulting in some FRT companies soliciting hundreds of billions of photos that serve as a "perpetual police lineup".[14] The issue of data ownership has garnered attention overseas, where they have regulated the ownership of one's personal data. In Europe, a person's data may only be scraped if it is necessary for a contract, for fair reasons, to protect a person's interests, or with consent. Recently, companies that have practiced data scraping have attempted to buy access to citizens' social security numbers as an additional output during law enforcement uses

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Figure 2: "Simple Burglary Subjects Wanted in the Fourth District - NOPD News," Nopdnews.com, 2020, https://nopdnews.com/post/march-2020/simple-burglary-subjects-wanted-in-the-fourth-dist/

[11] Joy Buolamwini and Timnit Gebru, "Gender Shades: Intersectional Accuracy Disparities in Commercial Gender Classification," proceedings.mlr.press (PMLR, 2018), https://proceedings.mlr.press/v81/buolamwini18a.html.

[12] Buolamwini

[13] Thaddeus L. Johnson et al., "Facial Recognition Systems in Policing and Racial Disparities in Arrests," *Government Information Quarterly* 39, no. 4 (August 2022): 101753, https://doi.org/10.1016/j.giq.2022.101753.

[14] Daniel J Solove and Woodrow Hartzog, "The Great Scrape: The Clash between Scraping and Privacy," *SSRN Electronic Journal*, January 1, 2024, https://doi.org/10.2139/ssrn.4884485.

Regulating Facial Recognition Technology

The leading bill on FRT: Currently, several bills in Congress aim to regulate FRT, with the most recent and leading being H.R. 4695, the Facial Recognition Act of 2025, which includes several highlights.[15]

1) Proper Use Cases: This would require those seeking to use FRT to obtain proper warrants when attempting to arrest an individual using FRT, and the technology would be limited to Felony crimes. Those who use FRT would also be mandated to receive training on its uses and potential shortcomings. It would also require complete transparency about uses so that defendants would know whether FRT was used in their cases. However, the use of FRT would not require warrants if trying to identify a deceased, incapacitated, or missing person.[16] It would also have a total ban on live face surveillance.
2) Certain Prohibited Uses of FRT: This would ban officers from using FRT to (1) identify people exercising their First Amendment right, (2) support immigration enforcement or deportation, (3) to use FRT with body cams, (4) use matched faces as the sole basis for probable causes (5) ban the use of FRT with drones, body cams, or dash cams, and (6) using data bases with illegally obtained information.
3) Transparency and Accountability: The bill also calls on NIST to update its testing practices to include more realistic test cases that assess potential gender and racial disparities in algorithms. In addition to the updated testing, it would require agencies to submit annual reports on convictions using FRT and the demographics of those convicted. Lastly, it would require not just lab tests but tests that also replicate field-like conditions.
4) Ban Scraped Images Databases: The bill would also prohibit law enforcement from using any FRT system that relies on a database containing photos or videos, obtained in violation of any law, a service's terms of use, through deception, unauthorized access, or unconstitutional government practices.

Possible improvements on H.R. 4695: While our organization fully supports the passage of this bill, we would ask congressional leaders to include minor amendments. Mainly, we recommend addressing racial bias during the algorithm's development phases. Leading research has shown that reducing bias at this stage significantly reduces the risk of wrongful identification. We also suggest that the U.S. consider the EU's Data Protection Law for guidance on regulating this technology.[17] The EU holds developmental teams accountable, not just the officers who utilize the technology. This would call for a more transparent understanding of how the algorithms themselves were developed, and for the training data to be racially and gender inclusive to mitigate potential errors in development.

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[15] Ted D-CA-36, "Text - H.R.4695 - 119th Congress (2025-2026): Facial Recognition Act of 2025," Congress.gov, 2025, https://www.congress.gov/bill/119th-congress/house-bill/4695/text.

[16] Ted D-CA-36,

[17] "What U.S. Regulators Can Learn from the EU AI Act," EPIC - Electronic Privacy Information Center, 2024, https://epic.org/what-u-s-regulators-can-learn-from-the-eu-ai-act/.

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